study guide

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davao model
united nations

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Message from the Chair

To our delegates,

It is a pleasure to welcome you to this committee.

You are about to discuss two issues that, while different in nature, both ask us to look closely at Mindanao beyond the way it is usually presented. These are not issues that can be reduced to a single problem or answered with a single solution. They involve history, governance, security, development, and most importantly, the people who live with the consequences of these decisions.

I know that seeing the word "advanced" attached to a committee can be a little intimidating. Please do not take it as a warning that you need to be an expert before you walk into the room. If anything, I hope it encourages you to be curious. Many of the questions we will be discussing are difficult precisely because they have been around for a long time, while receiving less attention than they should. There is value in finally giving these questions the space to be discussed seriously.

Once committee starts, do not be afraid to question each other. Some of the most interesting parts of MUN happen when a delegate points out something that everyone else overlooked, or when a discussion takes an unexpected direction. You do not need to have the perfect speech or the perfect answer. ***You just need to be willing to think.***

I hope this committee gives you the chance to engage with Mindanao in a way that goes beyond what you may have encountered in a classroom or a news headline. More than anything, I hope you find something in these discussions that stays with you even after the conference ends.

I am very excited to meet you all and see where you take these agendas!

Good luck, delegates. I will see you in committee.

In the spirit of Mindanao,
Ysabo B. Beluan
Chair, AD HOC Committee
DAVAOMUN II

Introduction to the Board of Dais

Chair
Ysabo B. Beluan

Secretary
Rhian Chylin C. Mejias

Rapporteur
Karl Luke A. Escabarte

Introduction to the Committee

Delegate Matrix

Delegate Alloc.	Name of Delegate
Association of Southeast Asian Nations (ASEAN)	*Queisha Franczesca Sabanal*
Department of Justice (DOJ)	*Claryz Bea Bihag*
Regional Development Council (SOCCSKSARGEN)	*Lance Travis Ditchon*
Moro National Liberation Front (MNLF)	*Prince Roland Astudillo*
Philippine Navy	*Ian Kent Cruz*
Regional Development Council (ZamPen)	*Laurie Mar Sande*
Bangsamoro Transition Authority (BTA)	*Les Sophia Ypil*
Yshmael "Mang" I. Sali	*Josh Andre Banguis*

Philippine Drug Enforcement Agency (PDEA)	*Antonio Tomas Lluisma*
Philippine Coast Guard (PCG)	*Nhylle Jhaxel Jumaway*
Department of the Interior and Local Government (DILG)	*Hafiza Abedin*
Department of National Defense (DND)	*Hanna Haneya Ali*
National Bureau of Investigation (NBI)	*Arlianna Zhiemme Cole Tacgos*
Department of Foreign Affairs (DFA)	*Aisah Datu*
Mindanao Development Authority (MinDA)	*Nadjerah Balindong*
Department of Public Works and Highways (DPWH)	*Fatmah Alianessah Derogongan*
Bangsamoro Islamic Armed Forces (BIAF)	*Abdul Mojib Ditucalan*
Philippine National Police (PNP)	*Charlz Dominik Uy*
National Security Council (NSC)	*Anaiah Noelle Quimera*
Bureau of Immigration (BI)	*Kirk Patrick Aller*
Bureau of Customs (BOC)	*Faith Abegail Ylaya*
Muedzul Lail Tan Kiram	*Nicko Ditchon*
Armed Forces of the Philippines (AFP)	*Alexandrea Jean Mari Villalon*
Regional Development Council (Davao)	*Felicity Natividad*
National Commission on Indigenous	*Sofia Louise Tolentino*

Peoples (NCIP)	
Bureau of Fisheries and Aquatic Resources (BFAR)	*Naiara Balunos*
Department of Trade and Industry (DTI)	*Precious Calang*
Office of the Presidential Adviser on Peace, Reconciliation and Unity (OPAPRU)	*Jabez Chamee De Guia*
Bangsamoro Economic and Development Council (BEDC)	*Maria Ellyne Angelique Ramos*
National Maritime Council (NMC)	*Alyssiana Luthien Pacsi*
Regional Development Council (Caraga)	*Precious Grace Gerongay*
National Development Authority (NEDA)	*Francis Yuri Pendon*
Department of Finance (DOF)	*Bernel Hussein Acob*

Purpose and Function of the Committee

The Ad Hoc Council for Mindanao Affairs exists to examine problems in Mindanao that are difficult to solve through a single institution or a single policy area. Both agendas placed before the Council share a common problem: **how much autonomy can be given to local and regional institutions without weakening the Philippine state itself?**

Agenda A asks this question through security. The Southern Backdoor cannot be secured entirely from Manila because the people who live around it possess local knowledge, customary institutions, and relationships that national agencies cannot simply reproduce. Yet giving these institutions a role in security cannot mean transferring the state's responsibility for national defense and territorial sovereignty to them.

Agenda B asks a similar question through development. Economic grievances in Mindanao are partly about who controls resources, who receives investment, and how much decision-making should remain in the national government. Decentralization can make development more responsive to local needs, but excessive fragmentation can also create unequal standards, weak coordination, or tensions with the constitutional principle of national unity.

The Council therefore has to navigate a recurring tension:

> **How do we give Mindanao enough institutional control to address problems that are distinctly local without creating institutions that operate as though they are independent from the Philippine state?**

This is particularly important because "centralization" and "unity" are not necessarily the same thing. A highly centralized state can still fail to understand local conditions. Conversely, decentralization does not automatically mean secession or fragmentation. The real question is where authority should sit, what responsibilities should remain national, and how these levels of government should interact. For Agenda A, that means determining how national defense institutions can work with local and customary frameworks. For Agenda B, it means determining how regional development institutions can receive greater economic authority while remaining within the constitutional structure of the Philippines.



Agenda A

Evaluating the Integration of National Defense Mandates with Institutional Custom Frameworks Along the Sulu "Southern Backdoor" to Optimize Border Security

Key Definitions

Term	Definition
Southern Backdoor	A term commonly used to describe the maritime approaches south of Mindanao, particularly routes through the Sulu Archipelago toward Sabah, Malaysia and the wider Sulu/Celebes Seas.
Sulu Archipelago	A chain of islands stretching between southwestern Mindanao and northern Borneo, including the province of Sulu.
Border Security	Measures used by a state to monitor and protect its territorial borders against illegal entry, trafficking, smuggling, terrorism, and other security threats.
Maritime Security	Protection of maritime spaces, vessels, people, infrastructure, and resources from threats such as piracy, armed robbery, terrorism, smuggling, and illegal activities.
National Defense	The protection of the Philippines' sovereignty, territorial integrity, population, and national interests against external and other security threats.
National Defense Mandates	The legal responsibilities given to national institutions, particularly the AFP and other relevant agencies, to protect Philippine territory and national security.
Institutional Framework	The formal organizations, laws, procedures, and government structures through which security and governance are carried out.

Customary Frameworks	Local practices, traditions, norms, authorities, and community mechanisms that influence governance, conflict resolution, movement, and social relations.
Traditional Authorities	Community-recognized leaders whose authority may arise from traditional, cultural, religious, or historical institutions.
Territorial Integrity	The principle that a state's territory must remain unified and protected from unlawful occupation, violation, or external interference.
Transnational Crime	Criminal activity that crosses national borders, such as trafficking, smuggling, and certain forms of piracy.
Customary dispute resolution	The settlement of disputes through locally recognized traditions and institutions rather than relying exclusively on formal courts.
BARMM	An autonomous region in the southern Philippines established to provide greater self-governance to the Bangsamoro people and address their political, cultural, and socio-economic aspirations.

Overview and History of the Topic

The Sulu "Southern Backdoor" is not simply a remote stretch of Philippine territory that happens to be difficult to patrol. It is a maritime space connecting the Philippines, Malaysia, and Indonesia, and one through which people, goods, fishing vessels, and other forms of legitimate movement have long passed. At the same time, its geography has made the area vulnerable to piracy, armed robbery, kidnapping-for-ransom, smuggling, and terrorism. According to the U.S. Department of State's 2016 Country Reports on Terrorism, the large number of islands and extensive maritime traffic in the Sulu and Celebes Seas have contributed to the difficulty of securing the area, while the region's maritime routes have also been exploited by criminal and terrorist networks (Refworld - UNHCR's Global Law and Policy Database, 2025).

This security problem became particularly visible through incidents involving vessels operating in the area. The U.S. Maritime Administration, in a 2018 advisory, recorded at least 15 reported boardings, attacks, or kidnappings in the Sulu and Celebes Seas during 2017, including five kidnapping incidents reportedly linked to the Abu Sayyaf Group (*2018-003-Sulu and Celebes Seas-Piracy/Armed Robbery/Terrorism*, 2018). These incidents occurred alongside the broader problems identified by the U.S. Department of State, including piracy, kidnapping-for-ransom, smuggling, and the movement of terrorist personnel and resources through maritime routes (Refworld - UNHCR's Global Law and Policy Database, 2025). The difficulty is that these activities do not occur in a maritime space used exclusively by criminals or security forces. The same waters are used for fishing, transportation, trade, and movement between communities. This makes the security problem more complicated than simply increasing patrols: authorities have to monitor a large and highly mobile maritime environment while allowing legitimate maritime activity to continue. The geography also means that threats do not necessarily stop at national boundaries.

The fact that the Southern Backdoor crosses maritime boundaries also means that the Philippines cannot address every security concern on its own. According to the Foreign Service Institute of the Philippines, the vastness of the area and the transnational nature of maritime crimes led the Philippines, Indonesia, and Malaysia to sign the Trilateral Cooperative Arrangement (TCA) on July 14, 2016. The arrangement was followed by rotational naval and air patrols beginning in 2017 and the establishment of Maritime Coordinating Centers in Tarakan, Indonesia; Tawau, Malaysia; and Bongao, Philippines. The three countries' cooperation was subsequently used to coordinate maritime security efforts in the Sulu-Celebes Seas, including patrols and information sharing (Quintos, 2017).

There is also a local institutional dimension to the problem. Communities in the region have their own local authorities, relationships, and customary mechanisms for resolving disputes. This is not entirely separate from the formal legal system. Republic Act No. 11054, or the Bangsamoro Organic Law, formally recognizes traditional and tribal justice systems and allows customary laws and conflict-resolution mechanisms to operate within the Bangsamoro framework, subject to the national legal system and human-rights standards. At the same time, the law makes an important distinction: national defense and security remain the responsibility of the National Government (*Republic Act No. 11054*, n.d.). This distinction matters because it establishes two things at once. The state retains ultimate responsibility for national defense and security, but local and customary institutions can still have recognized roles within the broader governance system. The question of integration therefore concerns how these institutions can work alongside national authorities without creating a separate system of defense or law enforcement.

The institutional status of Sulu itself later changed. During the 2019 plebiscite on the Bangsamoro Organic Law, Sulu voted against inclusion in the Bangsamoro Autonomous Region. The issue eventually reached the Supreme Court in *Province of Sulu v. Executive Secretary*. In its 2024 ruling, the Court held that Sulu could not be included in BARMM because the Constitution requires the affected territorial units to vote favorably for inclusion. The decision subsequently became final in November 2024 (*Province of Sulu v. Executive Secretary*, 2024).

The ruling created a new administrative question for Sulu. Executive Order No. 91, issued on July 30, 2025, subsequently declared Sulu part of Region IX, the Zamboanga Peninsula, for purposes including regional administration, development planning, investment programming, and budgeting. The order provided for a transition during FY2025 and stated that, beginning FY2026, programs and projects in Sulu would be implemented by relevant national government agencies, the Provincial Government of Sulu, and its component local governments according to their respective mandates (Evangelista, n.d.).

At the national level, the government has also continued to develop institutions intended to coordinate maritime security. Executive Order No. 57 of 2024 reorganized the National Coast Watch System and established the National Maritime Council as the central policy body for maritime security governance. The order defines maritime domain awareness as understanding activities, vessels, people, cargo, and other developments in the maritime domain that may affect national security, sovereignty, safety, the economy, or the environment (Bautista, n.d.).

Taken chronologically, the Southern Backdoor security issue has therefore developed across several overlapping areas: maritime crime and terrorism, trilateral cooperation with Malaysia and Indonesia, the formal recognition of customary institutions, Sulu's changing administrative status, and the strengthening of national maritime-security coordination. The issue before the Council emerges from this history: **how can national defense mandates be coordinated with local and customary frameworks in a maritime region where security, governance, and everyday movement operate in the same space?**

Scope of the Agenda

The agenda does not ask the Council to redesign the entire security system of the Sulu Southern Backdoor. Its focus is more specific: how national defense mandates can be carried out alongside institutional and customary frameworks that already exist in the communities surrounding the area. This makes the word integration particularly important. The question is not simply whether local actors should participate in security, but what role they should have, what authority they should exercise, and where national institutions must retain control.

One area of consideration is maritime domain awareness and border monitoring. The Southern Backdoor covers a large and difficult-to-monitor maritime space, so the Council may examine how national capabilities such as patrol vessels, radar, automatic identification systems, satellite monitoring, and aerial surveillance can be supplemented by information from communities that regularly use these waters. This could include fishermen, boat operators, coastal communities, and other local actors who may notice unusual movements before they are detected through formal monitoring systems. The challenge is to determine how such information can enter official security channels without turning civilian communities into informal extensions of the military.

A second area is community-based intelligence and information sharing. Local and customary institutions may possess knowledge that national agencies cannot easily acquire from outside the community, including familiar maritime routes, local relationships, patterns of movement, and existing systems for resolving disputes. The Council may therefore consider mechanisms such as designated community liaison officers, secure reporting channels, coordination with traditional leaders, and structured systems for verifying community-provided information. These mechanisms would need safeguards against misinformation, retaliation, political manipulation, and the misuse of local authority.

The agenda also covers coordination between national, regional, and local institutions. Security in the Southern Backdoor involves multiple actors, including the Armed Forces of the Philippines, Philippine Coast Guard, Philippine National Police, National Intelligence Coordinating Agency, Department of National Defense, Department of the Interior and Local Government, local governments, and relevant community institutions. The Council may examine whether clearer coordination mechanisms, information-sharing protocols, or defined responsibilities are needed to prevent overlapping mandates and gaps in response. This is especially relevant given the changing administrative position of Sulu following its exclusion from BARMM and its subsequent placement under Region IX for regional administration and development planning.

Another part of the scope is the legal and institutional status of customary frameworks. Customary institutions may be useful in mediation, community coordination, and information gathering, but their participation has to remain compatible with Philippine law and national security mandates. The Council therefore needs to consider which functions can appropriately be delegated, which should remain advisory, and which responsibilities cannot be transferred because they belong to the national government. This is particularly important in areas involving territorial sovereignty, national defense, law enforcement, and the use of force.

Finally, the agenda has a cross-border dimension. The Sulu maritime space connects the Philippines with Malaysia and Indonesia, meaning that local security mechanisms operate alongside existing interstate arrangements for patrols, information sharing, and maritime coordination. The Council may therefore evaluate how domestic community-based mechanisms can complement, rather than duplicate or interfere with, existing trilateral cooperation.

Ultimately, the scope of Agenda A comes down to a fairly practical institutional question: how can the Philippine state make use of the knowledge, legitimacy, and existing structures of communities in the Southern Backdoor without confusing local participation with the transfer of national defense authority? The Council should therefore focus on mechanisms that make these different layers of authority work together, rather than treating national security and local institutions as competing systems.

Major Stakeholders

The issue involves a diverse range of stakeholders, each with different responsibilities and perspectives on border security, community governance, and regional cooperation. Understanding these groups is important to developing security measures that address transnational threats while recognizing legitimate movement, livelihoods, and local institutions.

National government and security institutions remain the primary stakeholders, as they are responsible for maintaining territorial integrity, enforcing national laws, and coordinating maritime security. Institutions such as the Armed Forces of the Philippines, Philippine Navy, Philippine Coast Guard, Philippine National Police, Bureau of Immigration, Bureau of Customs, and National Maritime Council each have distinct roles in defense, law enforcement, border management, and maritime coordination.

Local governments and customary institutions are also important because they have closer connections to communities along the Southern Backdoor. Local government units, datus, elders, religious leaders, and other community leaders can provide local knowledge about traditional routes, vessels, livelihoods, and community relationships. Their role can support information-sharing, consultation, mediation, and prevention while keeping formal enforcement authority with the state.

Maritime communities and livelihood groups are directly affected by border-security policies because fishing, small-scale trade, and cross-border movement are important sources of livelihood in the region. Fisherfolk, boat operators, traders, and families with cross-border connections may provide useful information about activity in maritime areas, but overly restrictive enforcement could also make legitimate movement more difficult.

Neighboring states and regional organizations are important for addressing threats that cross national borders. Cooperation with Malaysia and Indonesia through mechanisms such as coordinated patrols, intelligence-sharing, and cross-border law enforcement can help address trafficking, smuggling, illegal fishing, and other transnational activities.

Previous Attempts to Solve the Issue/s

1. Trilateral Cooperative Arrangement / INDOMALPHI Patrols (2016)

- The Philippines, Indonesia and Malaysia signed the Trilateral Cooperative Arrangement in Jakarta in July 2016. It set a common procedure for maritime patrols, rules for sharing intelligence, and a joint communication plan. Coordinated patrols began in 2017 and now run through command centers in Tawau, Tawi-Tawi and Tarakan. The arrangement is credited with successes such as the February 2023 rescue of 27 people in the Sulu Sea. However, it is a military and law-enforcement tool built on state-to-state cooperation. It gives no role to the coastal communities who actually live and trade along these routes. It also runs over waters whose borders are not fully settled, which limits how far the patrols can be enforced.

2. AFP Modernization Act, RA 7898 (1995) and RA 10349 (2012)

- RA 7898 began with an initial ₱50 billion five-year budget, but the 1997 Asian Financial Crisis cut its funding short. The revised law, RA 10349, extended the program by fifteen years with ₱75 billion for the first five. It also moved the AFP's focus toward external defense, exempted major purchases from public bidding, and protected the budget from being folded into regular appropriations. This gave the AFP a stronger legal and financial base for operating in Sulu. Still, the law is aimed at conventional defense, and it bars buying equipment not already used by at least two other countries. It does not account for the mostly internal-security work in Sulu, such as counter-terrorism and anti-smuggling. Its rules on custom and local authority are also silent.

3. Philippine Coast Guard Law of 2009, RA 9993

- RA 9993 made the Philippine Coast Guard an armed, uniformed service under the Department of Transportation. It is responsible for maritime safety, navigation, maritime security and the prevention of terrorism at sea. It also moved maritime safety enforcement from MARINA to the Coast Guard, ending a long-running problem of agencies pointing fingers at each other after accidents. The law places the Coast Guard under the Department of National Defense only in wartime, which leaves the command line unclear during a security crisis short of war. Legislators have repeatedly called its administrative provisions too vague. The law also does not address how the Coast Guard should work with local maritime communities.

4. 1976 Tripoli Agreement and 1996 Final Peace Agreement (GRP–MNLF)

- The Tripoli Agreement of 1976 was the first serious effort to combine a customary and insurgent authority with the state. It proposed an autonomous region for thirteen provinces, but left the question of integrating MNLF fighters into the AFP for "later." The government then created two smaller regions of its own, and the agreement collapsed. The 1996 Final Peace Agreement revived it. It created the Southern Philippines Council for Peace and Development, began integrating MNLF members into the AFP and PNP, and set up the Darul Ifta to advise on religious and customary matters. However, Congress later changed how the council operated, and the framework lost much of its force. It shows that integration can fail even when it is well designed.

5. Bangsamoro Organic Law, RA 11054 (2018)

- The Bangsamoro Organic Law protects the customs, beliefs and traditions of the Bangsamoro people. It also defines "Bangsamoro waters," which extend twelve nautical miles from the low-water mark of the region's coasts. This places a regional jurisdiction in the same waters as the national defense mandate. But Sulu voted against the law in the 2019 plebiscite, and the Supreme Court ruled in September 2024 that Sulu is not part of the BARMM. The ruling became final that November. In July 2025, Executive Order 91 formally moved Sulu to Region IX. Sulu's customary communities now sit outside the framework designed to recognize them, while Tawi-Tawi and Basilan remain inside it. The result is a patchwork of jurisdictions along the very corridor this agenda concerns.
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6. Formal Recognition of Barter Trade: PD 93 (1973), EO 427 (1990) and EO 64

- Presidential Decree 93 acknowledged that traders in the Sulu Archipelago had for generations engaged in commerce with neighboring islands, and it eased customs procedures for them. Memorandum Order 24 in 1986 then planned a phase-out of barter in favor of conventional trade. Executive Order 427 in 1990 reversed course by transferring barter administration in Jolo to the ARMM regional government, with oversight from customs, trade and the Coast Guard. Under the Duterte administration, Executive Order 64 repealed EO 427 and created the Mindanao Barter Council. Its life is tied to the Bangsamoro Government, but with Sulu now outside the BARMM, it is unclear who would take over its work. In the end, the policy has changed direction several times, and it has never fully settled whether barter is a legitimate custom or a smuggling risk.

Conclusion

Securing the Sulu Southern Backdoor has never been only a matter of putting more patrol vessels in the water. The corridor is a shared maritime space, a trade route and a home to communities with their own authorities and customs. The state has responded on several fronts: trilateral patrols with Malaysia and Indonesia, legal and funding support for the AFP and the Coast Guard, and coordination bodies such as the National Coast Watch System. It has also tried repeatedly to bring custom into its own structures, from the Tripoli Agreement and the Bangsamoro Organic Law to the orders on barter trade. Each of these covers part of the problem. Yet the defense side gives the people who live and trade along these routes little formal role, while the custom side has often changed direction or lost force when it was not implemented.

Sulu's exit from BARMM adds another layer. The Bangsamoro Organic Law recognizes customary systems but keeps national defense and security with the National Government. Now that Sulu sits under Region IX, it is unclear who inherits the arrangements built around it, including the barter framework. Command lines, such as who leads the Coast Guard in a crisis short of war, also remain unsettled. These gaps are the openings that smugglers and armed groups can exploit. The Council should therefore focus on practical mechanisms that connect the different layers of authority. It should decide what local institutions can contribute, where national institutions must keep control, and how communities can take part without becoming responsible for national security. The goal is not to hand defense authority to local actors, but to make the state's authority better informed, more trusted and more effective along the Sulu corridor.

Q. A. R. M. A. s. (Questions a Resolution Must Answer)

1. What can local institutions know that national institutions cannot?

If customary leaders, fishermen, boat operators, and coastal communities have forms of knowledge that are difficult for national agencies to obtain from Manila, what information is actually worth integrating, and how can it be distinguished from rumor, political conflict, or ordinary local activity?

2. What should happen when local and national authority do not align?

If a customary institution understands a dispute or security situation differently from a national agency, whose assessment should prevail, and what mechanism should exist for resolving that disagreement?

3. How much authority does "integration" actually require?

Does meaningful participation require giving local institutions formal decision-making powers, or can they remain primarily sources of intelligence, mediation, and community coordination while national agencies retain operational control?

4. How do you integrate communities without making them responsible for national security?

If communities are encouraged to report suspicious activity or participate in maritime monitoring, what protections and limits are necessary so that civilians are not effectively turned into unpaid intelligence networks or placed at greater risk because of their cooperation?

5. Where should the Philippine state draw the line?

Which parts of Southern Backdoor security can be adapted to local conditions, and which responsibilities—particularly territorial defense, law enforcement, and the use of state force, must remain firmly within national authority?



Agenda B

Evaluating Regional Development Frameworks to Address Economic Decentralization Grievances While Upholding National Territorial Integrity and Constitutional Unity

Key Definitions

Term	Definition
Decentralization	The transfer of authority, responsibilities, and resources from the national government to local or regional institutions, in line with the constitutional principle that territorial and political subdivisions enjoy local autonomy.
Devolution	A form of decentralization in which specific functions and basic services of the national executive branch are transferred to local governments.
Economic Decentralization	The grant of fiscal and economic authority, such as revenue-raising, budgeting, resource-sharing, and development planning, to regional and local governments.
Regional Development Framework	The laws, plans, institutions, and funding arrangements through which national and regional governments coordinate economic and social development within a region, including regional development councils and intergovernmental bodies.
Autonomous Region	A region made up of provinces, cities, and areas sharing a distinct historical, cultural, economic, and social identity. It is created through an organic act approved by plebiscite and remains within the Constitution and the sovereignty and territorial integrity of the Philippines.
Fiscal Autonomy	The power of the Bangsamoro Government to create its own sources of revenue and allocate funds through its

	own appropriations law, with the goal of economic self-sufficiency.
Annual Block Grant	An automatic transfer from the national government to the Bangsamoro Government equal to 5% of net national internal revenue and Bureau of Customs collections from the third preceding fiscal year.
Intergovernmental Fiscal Policy Board (IFPB)	A body created by the Bangsamoro Organic Law to address revenue imbalances and to review the block grant formula every five years.
National Tax Allotment (NTA)	The share of local government units in national taxes, formerly called the Internal Revenue Allotment. Following the Mandanas-Garcia ruling, it is computed from all national taxes rather than only those collected by the BIR.
Mandanas-Garcia Ruling	The 2018 Supreme Court decision holding that the "just share" of local governments must be based on all national taxes, which became final in 2019 and took effect in FY 2022.
Wealth-Sharing	An arrangement dividing revenues from taxes and natural resources between the national and regional governments, such as the BOL's 75–25 sharing of national taxes collected in the Bangsamoro, excluding customs.
Constitutional Unity	The principle that autonomous and local units remain part of a single Philippine state. The Bangsamoro region is an integral, indivisible, and inseparable part of the

	national territory, and powers not granted to it remain with the national government.
Associative Relationship	An arrangement in which a sub-state entity is treated as a distinct partner of the state. The Supreme Court found this concept incompatible with the Constitution in the MOA-AD case because it presupposed an entity that was a state on its way to independence.
Economic Grievances	Perceived inequities in who controls resources, who receives investment, and who makes economic decisions. The BOL itself recognizes marginalization and unjust dispossession as grievances to be addressed through transitional justice.

Overview and History of the Topic

Economic decentralization in Mindanao is not only a question of how much money a region receives. It is also a question of who collects revenue, who decides how it is spent, and which level of government answers to the people for the results. The 1987 Constitution answers part of this. It guarantees local autonomy to provinces, cities, municipalities, and barangays, and it provides for an autonomous region in Muslim Mindanao. At the same time, it keeps limits in place. The President exercises general supervision over autonomous regions, powers not granted to them remain with the National Government, and the defense and security of the regions is a national responsibility (*1987 Constitution, Article X*, n.d.). Every framework the Council examines has to be read against both of these commitments at once.

The current arrangement is the product of several earlier attempts to strike this balance. Congress created the Autonomous Region in Muslim Mindanao (ARMM) through Republic Act No. 6734 in 1989. It later amended the charter through Republic Act No. 9054 in 2001, following the 1996 Final Peace Agreement with the MNLF, which brought Basilan and Marawi City into the region (PeaceGovPH, n.d.; "What Went Before," 2019). Neither law satisfied the armed groups. The MNLF said key provisions of the 1996

agreement remained unimplemented, while the MILF sought the highest form of autonomy possible within Philippine territory (PeaceGovPH, n.d.). Analysts have also noted that national line agencies did not devolve their powers and budgets to the ARMM, even though both laws required them to (Lau, 2019). For many in the region, this is the core of the grievance: autonomy on paper without the fiscal and administrative substance to make it real.

The limits of what autonomy can mean were tested in 2008. The government and the MILF were set to sign a Memorandum of Agreement on Ancestral Domain (MOA-AD) that would have created a Bangsamoro Juridical Entity. The Supreme Court stopped the signing and ruled the agreement unconstitutional. It held that the "associative relationship" the agreement envisioned assumed an entity that was a state moving toward independence, rather than an autonomous region under the Constitution (Legal Assassins, n.d.; *Province of North Cotabato v. Government of the Republic of the Philippines Peace Panel on Ancestral Domain*, 2008). The ruling did not end the peace process, but it redirected it. The 2012 Framework Agreement and the 2014 Comprehensive Agreement on the Bangsamoro led to the Bangsamoro Organic Law (BOL), which was ratified by plebiscite in January 2019 and replaced the ARMM with BARMM ("What Went Before," 2019). The BOL states that self-governance is to be exercised within the framework of the Constitution and Philippine sovereignty and territorial integrity (*Republic Act No. 11054*, n.d.).

The BOL contains the most detailed economic provisions so far for a Mindanao region. It grants fiscal autonomy with the aim of economic self-sufficiency, allows the region to create its own sources of revenue, and requires spending through an appropriations law passed by the Bangsamoro Parliament (*Republic Act No. 11054*, n.d.). Three features stand out. The first is the annual block grant, which is automatically appropriated in the national budget, computed at 5% of net national internal revenue and customs collections from three fiscal years earlier, and released without holdbacks (Department of Finance, 2025; *Republic Act No. 11054*, n.d.). The second is wealth-sharing: 75% of national taxes collected in the region, excluding customs, goes to the Bangsamoro, and the 25% national share also accrues to the Bangsamoro for the first ten years (*Republic Act No. 11054*, n.d.). The third is a set of intergovernmental bodies, including the Intergovernmental Fiscal Policy Board and the Intergovernmental Relations Body, meant to resolve disputes through consultation (*Republic Act No. 11054*, n.d.). The BOL also sets limits. The region's taxing power excludes income tax (except on banks), customs duties, value-added tax, and excise taxes. The Commission on Audit remains the exclusive auditor. Personal services spending is capped at 45% of total revenue sources. After twenty years, part of the region's own tax and resource revenues will be deducted from the block grant, which

suggests the grant was designed as a transitional support rather than a permanent one (*Republic Act No. 11054*, n.d.).

The amounts involved are significant. The Bangsamoro Government received PHP 70.51 billion in block grants in 2024, and PHP 337.53 billion in total from 2020 to 2024 (Department of Finance, 2025). Its 2026 budget of about PHP 114 billion is the largest in the region's history ("BARMM's Budget," 2025; "P114-B BARMM Budget," 2025). A 2026 study by the Congressional Policy and Budget Research Department and the Institute for Autonomy and Governance describes the block grant as the region's largest and most stable revenue source. It also identifies structural challenges, including the need for stronger technical capacity in budget review (Institute for Autonomy and Governance, 2026).

Development outcomes show both progress and unfinished work. According to the Philippine Statistics Authority, poverty incidence among families in BARMM fell from 52.6% in 2018 to 23.5% in 2023, but the region remained among those with the highest poverty rates, alongside the Zamboanga Peninsula at 24.2% ("PSA: BARMM Poverty Incidence," 2024). The gains were uneven within BARMM. Sulu and Lanao del Sur recorded double-digit declines, while Maguindanao and Tawi-Tawi showed stagnation or slight increases (Philippine Information Agency, 2025).

Decentralization in Mindanao also cannot be separated from the national picture. Under the Local Government Code of 1991, local governments receive 40% of national internal revenue taxes collected in the third preceding fiscal year ("A Primer on the Mandanas Ruling," 2022). In 2018, the Supreme Court ruled in the Mandanas-Garcia cases that this "just share" must be computed from all national taxes. The ruling became final in 2019, and local governments received adjusted shares beginning in FY 2022 (*Executive Order No. 103*, n.d.; Galing Pook Foundation, n.d.). The change was projected to raise local government shares to about PHP 959 billion, an increase of roughly 38%, or PHP 263 billion, over FY 2021 levels. This reduced the resources available to the national government (Galing Pook Foundation, n.d.). To close the gap, Executive Order No. 138 in 2021 directed the full devolution of certain executive functions to local governments by the end of FY 2024, and a later order extended the transition period (*Executive Order No. 103*, n.d.). For Mindanao, this means two decentralization tracks running side by side: the asymmetric arrangement for BARMM, and general devolution to local governments elsewhere. The BOL specifies that the privileges local governments already enjoy under the Local Government Code shall not be diminished (*Republic Act No. 11054*, n.d.).

The placement of Sulu adds another layer. After the Supreme Court's 2024 ruling excluded Sulu from BARMM, Executive Order No. 91 placed the province under Region IX for regional administration, development planning, investment programming, and budgeting. From FY 2026, programs in Sulu are to be implemented by national agencies, the Provincial Government, and its local governments according to their mandates (Evangelista, n.d.). A province with a long history of grievances is therefore now planned for outside the Bangsamoro fiscal arrangement, in a region whose own poverty rate is comparable to BARMM's ("PSA: BARMM Poverty Incidence," 2024).

The framework is also in transition. BARMM's first parliamentary elections were postponed at least four times before being held on September 14, 2026 ("LIVE UPDATES: First BARMM Parliamentary Elections," 2026). In the party-list results, the Bangsamoro Federal Party won 16 seats, the United Bangsamoro Justice Party 15, the BARMM Grand Coalition 8, and the Raayat Democratic Party 1 ("LIVE UPDATES: 2026 BARMM Parliamentary Election Results," 2026). No party holds a clear majority, the chief minister's seat remained vacant as coalitions were being negotiated, and the term of the elected officials is set to begin on October 30, 2026 ("LIVE UPDATES: First BARMM Parliamentary Elections," 2026; Presidential Communications Office, 2026). The Intergovernmental Fiscal Policy Board's first five-year review of the block grant formula was also targeted for completion in early 2026, in time to shape the 2027 national budget (Department of Finance, 2025). The issue before the Council emerges from this history: **how can Mindanao be given enough control over resources, budgets, and development priorities to address grievances that are distinctly local, while ensuring that this autonomy is exercised within the constitutional structure and does not become a claim to separate statehood?**

Scope of the Agenda

The agenda does not ask the Council to rewrite the Constitution, redraw the boundaries of BARMM, or reopen the peace agreements. Its focus is more specific: how regional development frameworks can be designed so that economic grievances in Mindanao are addressed through greater regional control over resources, budgets, and priorities, while the powers of the national government and the constitutional unity of the Philippines remain intact. This makes the word *decentralization* particularly important. The question is not simply whether Mindanao regions should receive more, but what kind of authority should be transferred, to whom, and under what conditions.

One area of consideration is fiscal transfers and revenue-raising. The Council may examine the block grant, wealth-sharing arrangements, and the National Tax Allotment, and whether current formulas are adequate, predictable, and tied to performance. It may also consider how the ongoing block grant review should weigh both the region's fiscal needs and its actual capacity to generate revenue (Department of Finance, 2025; *Republic*

Act No. 11054, n.d.). The challenge is to design transfers that support development without creating permanent dependence, or a perception that autonomy is only as strong as the national budget allows.

A second area is regional development planning and coordination. The Constitution provides for regional development councils, and the BOL creates bodies such as the Intergovernmental Infrastructure Development Board and the Bangsamoro Sustainable Development Board. It also places the Chief Minister in the Mindanao Development Authority and, on matters concerning the region, in the National Economic and Development Authority Board (*1987 Constitution, Article X*, n.d.; *Republic Act No. 11054*, n.d.). The Council may examine whether these mechanisms give regional institutions real influence over national investment decisions, or whether national and regional plans simply run in parallel. This is especially relevant given Sulu's placement under Region IX (Evangelista, n.d.).

The agenda also covers devolution and institutional capacity. Transferring responsibilities under the Mandanas-Garcia ruling and Executive Order No. 138 only works if the receiving institutions can plan, budget, procure, and deliver services (*Executive Order No. 103*, n.d.). Given the capacity gaps identified in the fiscal governance study of BARMM (Institute for Autonomy and Governance, 2026), the Council may consider capacity-building, technical assistance, and monitoring, including the role of the Commission on Audit as the exclusive auditor of the Bangsamoro Government and its local governments (*Republic Act No. 11054*, n.d.).

Another part of the scope is resource governance and equity across Mindanao. The BOL gives the Bangsamoro Government revenues or shares from natural resources within its territory and recognizes the right of indigenous peoples to an equitable share of revenues from their ancestral lands (*Republic Act No. 11054*, n.d.). The Council may consider how resource-sharing can be structured so that benefits reach communities, including indigenous peoples and constituent local governments. It should also consider that BARMM is not the only part of Mindanao facing economic hardship: the Zamboanga Peninsula recorded a similar poverty rate in 2023, and progress within BARMM has been uneven across provinces ("PSA: BARMM Poverty Incidence," 2024; Philippine Information Agency, 2025). Frameworks that benefit one region while overlooking others risk creating a two-tier Mindanao.

Finally, the agenda has a constitutional dimension. The Council needs to consider which economic powers can be devolved through legislation and which would require constitutional change. The Constitution reserves to the national government all powers

not granted to autonomous regions, keeps the President's general supervision in place, and limits what an organic act may grant (*1987 Constitution, Article X*, n.d.). The Supreme Court's MOA-AD ruling shows that autonomy can be substantial but cannot take the form of a separate state (*Province of North Cotabato v. Government of the Republic of the Philippines Peace Panel on Ancestral Domain*, 2008). The BOL's own limits on taxation and borrowing show where the current framework already draws the line (*Republic Act No. 11054*, n.d.).

Ultimately, the scope of Agenda B comes down to a fairly practical institutional question: how can the Philippine state give regional institutions the fiscal and planning authority they need to address distinctly local grievances, without confusing economic autonomy with a claim to separate statehood? The Council should focus on mechanisms that make national and regional development authority work together, such as transfer formulas, performance conditions, and intergovernmental bodies, rather than treating national unity and regional autonomy as competing goals. Security questions are addressed separately under Agenda A.

Major Stakeholders

The issue involves a wide range of national, regional, local, and community stakeholders, each contributing different perspectives on economic development, decentralization, governance, and national territorial integrity. Understanding these groups is essential to addressing regional economic disparities while maintaining coordination between local and national institutions.

National government institutions remain central stakeholders because they are responsible for national development planning, fiscal policy, governance, security, and the protection of territorial integrity. Institutions such as the National Economic and Development Authority, Department of Finance, Department of the Interior and Local Government, Department of National Defense, National Security Council, and Armed Forces of the Philippines contribute to policies concerning decentralization, resource distribution, infrastructure, and national unity.

Mindanao and regional development institutions play an important role in addressing regional disparities and improving economic opportunities. The Mindanao Development Authority, Bangsamoro Economic and Development Council, and Regional Development Councils help identify regional priorities involving infrastructure, investment, employment, connectivity, and socioeconomic development.

Local and traditional institutions represent communities whose economic interests and historical experiences shape discussions on decentralization and regional governance. Local governments, traditional leaders, and Indigenous communities can provide perspectives on local representation, traditional institutions, ancestral domains, and access to resources.

Economic, infrastructure, and resource-management institutions are important because regional development depends on trade, connectivity, infrastructure, and access to natural resources. Agencies such as the Department of Trade and Industry, Department of Public Works and Highways, Bureau of Customs, and Bureau of Fisheries and Aquatic Resources contribute to formalizing trade, improving infrastructure, managing resources, and expanding legitimate economic opportunities.

International and regional stakeholders also contribute to discussions surrounding development, trade, security, and sovereignty. The Department of Foreign Affairs and ASEAN provide avenues for regional cooperation while maintaining the Philippines' national interests and territorial integrity.

Previous Attempts to Solve the Issue/s

1. 1987 Constitution, Article X (1987)

- Article X guarantees local autonomy to provinces, cities, municipalities, and barangays and orders the creation of autonomous regions in Muslim Mindanao and the Cordilleras. It sets a limit: autonomy must stay within the Constitution and the national sovereignty and territorial integrity of the Republic, and the President keeps general supervision over autonomous regions (*1987 Constitution, Article X*, n.d.). This made Mindanao autonomy a constitutional duty rather than a political favor. However, the text does not say how resources should be shared or how economic grievances should be settled, so those questions were left to Congress and to later negotiations. Every later framework had to fit under this ceiling, and the ones seen as going past it were struck down.

2. ARMM, RA 6734 (1989) and RA 9054 (2001), and the GRP–MNLF Final Peace Agreement (1996)

- Congress created the ARMM through RA 6734 in 1989 and amended its charter through RA 9054 in 2001, following the 1996 Final Peace Agreement with the MNLF (PeaceGovPH, n.d.; "What Went Before," 2019). The 1996 agreement proclaimed a Special Zone of Peace and Development and created the Southern

Philippines Council for Peace and Development (SPCPD). This was a transitory body under the Office of the President meant to coordinate economic and social development in the zone (Ramos, 1996). However, the Peace Accords Matrix reports that the SPCPD did not lead to the socio-economic institutions the accord called for (Peace Accords Matrix, n.d.-a). National line agencies also did not devolve their powers and budgets to the ARMM, even though both laws required it (Lau, 2019). Crisis Group notes that the ARMM came to be seen as a "failed experiment," with clans taking over the region while the MILF kept demanding stronger fiscal and political rights (International Crisis Group, 2020). The lesson is that autonomy on paper, without real fiscal and administrative substance, did not settle the grievance.

3. Memorandum of Agreement on Ancestral Domain (MOA-AD) and the Supreme Court Ruling (2008)

- The government and the MILF were set to sign the MOA-AD, which would have created a Bangsamoro Juridical Entity with an "associative relationship" with the national government. The Supreme Court stopped the signing and ruled the agreement unconstitutional on October 14, 2008 (*Province of North Cotabato v. Government of the Republic of the Philippines Peace Panel on Ancestral Domain*, 2008). It found that the agreement violated sovereignty and territorial integrity and lacked public consultation. In his separate opinion, Justice Carpio stressed that the executive would have been obliged to amend the Constitution to conform to the MOA-AD (Carpio, 2008). The attempt pushed for economic and political autonomy outside the constitutional framework, and it did not survive. It remains the clearest example of a deal that failed because it went past the ceiling and was negotiated without consultation.

4. Mindanao Development Authority (MinDA) Act, RA 9996 (2010)

- RA 9996 made it state policy to accelerate the socioeconomic growth of Mindanao through a coordinated, integrated approach to Mindanao-wide development plans, programs, and projects. It tasks MinDA with formulating an integrated development framework for Mindanao consistent with the government's peace and development initiatives. It also has MinDA recommend Mindanao-wide programs to the NEDA Board for approval (Republic of the Philippines, 2010). This gave Mindanao a single planning and coordinating body. However, MinDA works under national supervision and does not itself transfer fiscal authority. It does not change how national resources are shared with the regions, so it addresses coordination but not the question of who controls the money.

5. Framework Agreement and Comprehensive Agreement on the Bangsamoro (2012–2014)

- After the MOA-AD collapsed, the government and the MILF signed the Framework Agreement on the Bangsamoro in 2012. The Comprehensive Agreement on the Bangsamoro (CAB) followed on March 27, 2014, ending 17 years of negotiations. It bundled annexes on transitional arrangements, revenue generation and wealth sharing, power sharing, and normalization (Government of the Philippines & Moro Islamic Liberation Front, 2014). The Peace Accords Matrix notes that these documents set out decentralization and the division of political and fiscal powers between the central and Bangsamoro governments (Peace Accords Matrix, n.d.-b). Unlike the MOA-AD, the agreement was meant to be carried out through a law passed by Congress. However, it could not take effect on its own, and its wealth-sharing and power-sharing terms became enforceable only once the Bangsamoro Organic Law was enacted in 2018.

6. Bangsamoro Organic Law, RA 11054 (2018), and the Sulu Ruling (2024)

- The Bangsamoro Organic Law (BOL) replaced the ARMM with BARMM after its ratification in January 2019 ("What Went Before," 2019). It contains the most detailed economic provisions of any Mindanao framework so far. It grants fiscal autonomy, an annual block grant of 5% of net national internal revenue and customs collections, a 75–25 wealth-sharing arrangement, and intergovernmental bodies such as the Intergovernmental Fiscal Policy Board (*Republic Act No. 11054*, n.d.). BARMM received PHP 70.51 billion in block grants in 2024 (Department of Finance, 2025). The law also sets limits: the region's taxing power excludes income tax (except on banks), customs duties, value-added tax, and excise taxes, and the Commission on Audit remains its exclusive auditor (*Republic Act No. 11054*, n.d.). In 2024 the Supreme Court excluded Sulu from BARMM because the province rejected the law in the 2019 plebiscite (*Province of Sulu v. Executive Secretary*, 2024). Executive Order No. 91 then placed Sulu under Region IX for regional administration, development planning, and budgeting (Evangelista, n.d.). Implementation is still uneven. Crisis Group finds that the interim administration has struggled to bring good governance and development to all communities in the region, and that Manila's interventions have eroded the foundations of autonomy (International Crisis Group, 2026). An IAG study also identifies the need for stronger technical capacity in budget review (Institute for Autonomy and Governance, 2026). The first parliamentary elections were held only in September

2026 and produced no clear majority ("LIVE UPDATES: 2026 BARMM Parliamentary Election Results," 2026), so the framework remains in transition.

7. Mandanas-Garcia Ruling and Executive Orders No. 138 and 103 (2018–present)

- In 2018 the Supreme Court ruled that the "just share" of local governments must be computed from all national taxes, not only those collected by the BIR. The ruling became final in 2019 and took effect in FY 2022, and the change was projected to raise local shares by roughly 38% (Galing Pook Foundation, n.d.). Executive Order No. 138 (2021) directed the full devolution of certain executive functions to local governments, and Executive Order No. 103 later extended the transition period (*Executive Order No. 103*, n.d.). The DBM states that this effort should not be misconstrued as a step toward federalism (Department of Budget and Management, n.d.). For Mindanao, this is the second decentralization track next to the BARMM arrangement. However, it applies nationwide and gives no special arrangement to the regions with the strongest grievances. It also works only if receiving local governments can plan, budget, procure, and deliver services (*Executive Order No. 103*, n.d.).

Conclusion

Addressing economic grievances in Mindanao has never been only a matter of sending more money to the region. It is also a question of who collects revenue, who decides how it is spent, and who answers for the results. The state has responded on several fronts: a constitutional guarantee of autonomy, the ARMM and the 1996 agreement with the MNLF, the MinDA planning framework, the peace agreements with the MILF that led to the Bangsamoro Organic Law, and nationwide devolution through the Mandanas-Garcia ruling. Each covers part of the problem. Earlier attempts either created structures without fiscal substance, coordinated planning without transferring authority, or went past the constitutional ceiling, as the MOA-AD did. The BOL is the most complete framework so far, but it is still a work in progress. Its block grant is designed as transitional support, capacity gaps remain, and the first elected government has only just been chosen.

Sulu's move to Region IX adds another layer. Mindanao now has an asymmetric arrangement for BARMM, general devolution for local governments elsewhere, and a province with a long history of grievances planned for outside the Bangsamoro fiscal arrangement. Without care, these tracks can produce a two-tier Mindanao. The Council should therefore focus on practical mechanisms that connect national and regional authority. These include transfer formulas that weigh both need and capacity,

performance conditions and audit, intergovernmental bodies with real influence over investment decisions, and capacity-building for the institutions that receive new powers. The Constitution sets the limit, but it does not require centralization. The goal is not to loosen national unity but to make it credible, with autonomy that is exercised within the constitutional structure and delivers results that communities can feel.

Q. A. R. M. A. s. (Questions a Resolution Must Answer)

1. What problem is economic decentralization supposed to solve?
If grievances in Mindanao come from the amount of funding, from who controls it, from delays in implementation, or from uneven investment, which of these can decentralization actually address, and which require a different kind of reform?

2. How much fiscal independence is enough?
Should BARMM be expected to rely less on the block grant over time? If so, what revenue powers, incentives, and safeguards are needed so that reduced national transfers do not become reduced services?

3. Who decides when national and regional development priorities differ?
If a regional government and national agencies disagree over infrastructure, investment, or the use of natural resources, what mechanism should resolve the disagreement, and what role should intergovernmental bodies play compared with presidential supervision and Congress?

4. How do you avoid a two-tier Mindanao?
How can frameworks address grievances in areas outside BARMM, including Sulu now under Region IX, and in provinces within BARMM that have not seen the same progress, without creating perceptions of unequal treatment or competing claims among regions?

5. Where does autonomy end and constitutional unity begin?
Which economic powers, such as taxation, resource management, borrowing, and foreign assistance, can be exercised by regional institutions? Which safeguards, such as audit, supervision, and national standards, must remain so that decentralization strengthens the state rather than fragmenting it?

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